EXCEL LEGACY REALTY GROUP

TRUST SERVICES • NEWLY REVISED EDITION

Declaration of Trust & Personal Property Trust Agreement

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EXCEL LEGACY REALTY GROUP

DECLARATION OF TRUST AND PERSONAL PROPERTY TRUST AGREEMENT

[Name of Trust] — ([ ] Revocable [ ] Irrevocable)

STATE OF [Governing State] COUNTY OF [County]

THIS TRUST AGREEMENT, dated as of [Effective Date], and known as [Name of Trust], certifies that [Trustee Name(s)], of [Trustee Street Address, City, State ZIP] ("Trustee," whether one or more), is authorized to administer trusts under the laws of [Governing State] and takes title to the personal property or entity membership interests listed in Exhibit "A" attached hereto. IT IS AGREED as follows:

1. Powers and Authority of Trustee. Subject to the power of direction below, the Trustee holds full authority to manage, vote, control, and protect the trust property as owner thereof, including power to acquire, lease, license, pledge, or convey personal property and LLC/corporate interests; open, maintain, or close bank, merchant, or brokerage accounts; sign checks, contracts, and notes; hire legal or tax counsel; and execute all instruments needed for lawful trust administration.

2. Beneficiaries and Beneficial Interests (Totaling 100%). This express trust holds the trust property for the benefit of the following Beneficiary(ies), who are entitled to the earnings, avails, and proceeds thereof in the percentages below: • [Beneficiary #1 Full Legal Name] — [____%] undivided beneficial interest; • [Beneficiary #2 Full Legal Name (if any)] — [____%] undivided beneficial interest. Upon a Beneficiary's death, that share passes to [Successor Beneficiary Name(s)], or if none is named, to that Beneficiary's estate or revocable living trust.

3. Power of Direction and Authorized Banking / Regulatory Disclosures. The Trustee shall sell, pledge, borrow against, or transfer core trust property only upon written direction of [Name(s) of Trust Director(s) or '100% of Beneficiaries']. Routine banking acts follow written authorization of the Beneficiaries. Confidentiality & Compliance Carve-Out: Internal schedules remain private from unauthorized third parties, EXCEPT the Trustee is expressly authorized to disclose this Agreement, a Certificate/Affidavit of Trust, taxpayer IDs, and FinCEN Customer Due Diligence (CDD) beneficial ownership data to banks, payment processors, counterparties, and federal/state tax or regulatory authorities.

4. Co-Trustee Continuity and Successor Trustee. If Co-Trustees serve and one dies, becomes incapacitated, or resigns, the remaining Co-Trustee acts alone unless a replacement is appointed by the holders of the power of direction. If no initial Trustee can serve, [Successor Trustee Full Name], of [Successor Trustee Address], serves as Successor Trustee upon written acceptance; otherwise the Beneficiaries shall appoint a replacement.

5. Nature and Transferability of Beneficial Interest. Each Beneficiary's interest consists of the power of direction and the right to receive distributions of earnings and proceeds, deemed personal property. No assignment or pledge of a beneficial interest is valid without prior written consent of any co-Beneficiaries and written lodging with the Trustee.

6. Expenses, Indemnification, Taxes & Third-Party Reliance. Documented trust expenses properly advanced by a Trustee or Beneficiary are reimbursed prior to profit distributions; the Trustee need not advance personal funds. All required federal, state, and local tax filings and liabilities shall be satisfied by the responsible grantors, beneficiaries, or underlying LLC/entity. Financial institutions and counterparties relying in good faith upon a signed Certificate/Affidavit of Trust need not inquire into internal trust directions.

7. Resignation, Removal, Amendment, Term & Governing Law. A Trustee may resign or be removed by the holder(s) of the power of direction upon ten (10) days' written notice. If marked Revocable above, this Trust may be amended or revoked in writing by [Settlor(s) / 100% of Beneficiaries] (note: revocable trust assets generally remain subject to settlor creditor claims under state law). Unless earlier ended or extended in

writing, this Trust terminates twenty (20) years from [Effective Date] and distributes remaining assets pro rata. Annual Trustee fee: $[0.00 / Amount]. Governed exclusively by the laws of the State of [Governing State]; if any clause is invalid under [Governing State] law, all remaining provisions stay valid.

IN WITNESS WHEREOF, the Settlor(s)/Beneficiary(ies) and Trustee(s) execute this Agreement as of [Effective Date].

NOTARY ACKNOWLEDGMENT

State of [Governing State], County of [County]) ss. Subscribed, sworn to, and acknowledged before me on this _____ day of _____, 20____, by [Name(s) of Signer(s)], proved via satisfactory identification to be the individual(s) who appeared before me. _____ Notary Public, State of [Governing State], County of _____ My Commission Expires: _____ Acting in the County of: _____

EXHIBIT "A" — SCHEDULE OF TRUST PROPERTY & ASSIGNMENT

Attached to and made part of [Name of Trust], dated [Effective Date]

1. Business Entity Interests Assigned to Trust (If Applicable): • Entity Legal Name: [LLC or Corporation Name] • State of Formation & Filing / Entity ID: [State] — Entity #[Filing ID] • Federal Employer Identification Number (FEIN): [XX-XXXXXXX] • Percentage of Membership / Ownership Interest Held in Trust: [e.g., 100%]

2. Financial Accounts Held in Trust (If Applicable): • Financial Institution: [Bank / Credit Union / Brokerage Name] • Account Title: [Name of Trust or Underlying Entity] • Account Type & Last 4 Digits: [Checking / Savings] — #[XXXX]

3. Other Tangible or Intangible Personal Property: • [Describe Intellectual Property, Equipment, Notes, or Personal Property, with Serial/ID Numbers]

4. Assignment & Acceptance of Trust Property: The undersigned Owner(s)/Grantor(s) hereby assign, transfer, and convey the property listed above to [Trustee Name(s)], as Trustee(s) of [Name of Trust] dated [Effective Date], to be held and administered in accordance with the Declaration of Trust.

_____ [Trustee #1 Name], Trustee

_____ [Trustee #2 Name (if Co-Trustee)], Trustee

_____ [Beneficiary #1 Name], Beneficiary

_____ [Beneficiary #2 Name (if any)], Beneficiary

_____ WITNESS #1 (Print & Sign)

_____ WITNESS #2 (Print & Sign)

_____ [Grantor / Assignor #1 Name] Assigning Owner

_____ [Grantor / Assignor #2 Name (if any)] Assigning Owner

_____ [Trustee #1 Name] Accepting Trustee

_____ [Trustee #2 Name (if any)] Accepting Trustee